

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION**

1. CONTRACTING ACTIVITY

The Naval Sea Systems Command, Southwest Regional Maintenance Center (N55236), Contracting Department Code 440A, 3755 Brinser Street, Suite #1, San Diego, CA 92136-5299. Contracting Point of Contact: Kendric McNair, at kendric.e.mcnaair.civ@us.navy.mil.

2. DESCRIPTION OF THE ACTION BEING APPROVED:

This proposed contract action adds a New Work item to a firm-fixed-price contract awarded to BAE Systems San Diego (BAE) on February 28th, 2025. Contract N00024-25-C-4406 was awarded for USS O’KANE (DDG 77) Fiscal Year 2026 (FY26) Docking Selected Restricted Availability (DSRA). Work Item to be incorporated: 980-90-026 Uptake Exhaust and Plenum Ablative Upgrade.

3. DESCRIPTION OF SUPPLIES/SERVICES:

- a. 980-90-026 Uptake Exhaust and Plenum Ablative Upgrade
- b. Total Estimated Value: [REDACTED]. Funding will be FY26 OMN (NAVSEA funded)
- c. ORDALT 79353 has been approved to as a late add to the availability. The Forward and Aft MK 41 Vertical Launching System (VLS) requires that the ablative material inside the Uptake Exhaust and Plenum be upgraded to handle the MK 72 boosted missile. Without this ORDALT being installed, there is the potential for the existing ablative material to be prematurely expended thus causing a reduction in equipment readiness/capability and warfighting ability.
- d. The Government’s minimum needs have been certified as complete and accurate by the technical and requirements personnel.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1 – this authority applies in those situations where the supplies or services required by the agency are available from only one responsible source or only from a limited number of responsible sources and no other type of property or services will satisfy the needs of the agency.

5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY

Request for Contract Change (RCC) 13N was generated to have the contractor provide support services to the Alteration Installation Team (AIT) during the execution of the work. These support services are to be provided from January 6, 2026, to May 21, 2026. Support services being provided include temporary services such as clean dry air, electrical connections, lighting, supply and exhaust ventilation. The support services required to be provided are vital in the successful and safe completion of this work.

Soliciting and awarding a competitive follow-on contract would be unfeasible given the availability of capable contractors. The duration and complexity of this work (five months), which is longer than a standard Continuous Maintenance Availability (CMAV) or Emergent Availability (ERAV), requires completion during the CNO availability by a contractor experienced in providing long-term temporary services. Other temporary services are already being established at BAE for the CNO availability. Additionally, the USS O’KANE (DDG 77) DSRA is expected to be docked at BAE’s facility on January 19, 2026, when temporary services will be required. BAE’s facility not only contains the space for the temporary equipment, but because the USS O’KANE (DDG 77) will be docked at BAE’s facility, there will be no requirement for the Government to pay a contractor additional money to rent space. If an outside contractor were to provide the necessary temporary services, it would lead to duplicative costs for the Government (generators, cables, etc.). Having an outside contractor provide additional temporary services in addition to the temporary services already provided by BAE could result in costs upwards of [REDACTED]. If this ORDALT is not accomplished in this CNO availability, there is a potential risk of a catastrophic failure of the ablative material in the Uptake Exhaust and Plenum of the Vertical Launching System. This failure could lead to missile booster flames burning through the steel deck or bulkhead, causing extensive structural damage and a loss of a major warfighting capability.

6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS FROM AS MANY OFFERORS AS PRACTICABLE:

The original contract was awarded competitively in which BAE was the selected awardee.

The Government conducted a technical review of BAE’s proposal and found that their proposal was technically acceptable. Given the nature of the solicitation, the urgency and current ship location, award to the current contractor can satisfy the Agency’s requirement and will avoid serious injury to the Government. A notice in accordance with FAR Subpart 5.2 will not be publicized based on the exception in FAR 5.202(a)(2). It is in the Government’s best interest to incorporate the critical maintenance work in order to meet and support the USS O’KANE (DDG 77) FY26 DSRA operational schedule. This is an atypical event and could not be planned or forecasted. Accordingly, the Administrative Contracting Officer (ACO) determined that this course of action is the most prudent way forward in this unique instance. The USS O’KANE Docking Selected Restricted Availability (DSRA), Contract N00024-25-C-4406, was competitively awarded through

full and open competition to BAE San Diego Ship Repair to accomplish critical planned repair, maintenance, and alterations.

7. DETERMINATION OF FAIR AND REASONABLE COST:

The Contracting Officer has determined the anticipated cost to the Government will be fair and reasonable based technical analysis, to be conducted pursuant to FAR, Part 15. Technical analysis will be performed with the Project Manager to ensure the proposed labor hours, material cost and subcontractor cost correspond with the expected cost or Independent Government Estimate (IGE). Market research beyond the above was not conducted due to the fact that this complex work is currently in process, making it impractical for another company to perform with simultaneous and related occurring work.

8. ACTION TAKEN TO REMOVE BARRIERS TO COMPETITION:

While standard procedures would follow the typical competitive solicitation process, it is in the Government's best interest to incorporate and award this critical maintenance work to BAE in order to meet and support Fleet operational readiness and prevent additional harm to the government by risking further delays. This is an unanticipated and atypical event and could not be planned or forecasted, accordingly, the ACO determined that this course of action is the most prudent way forward in this unique instance.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE:

DAVIS.MICHAEL.THOMAS.

Digitally signed by
DAVIS.MICHAEL.THOMAS.

Date: 2026.01.05 11:10:23 -08'00'

Project Manager, USS O’KANE (DDG 77)
(619) 559-8917

REQUIREMENTS COGNIZANCE:

GALLO.CHRISTIE.JANE

Digitally signed by
GALLO.CHRISTIE.JANELLE.
Date: 2026.01.05 12:45:50 -08'00'

Port Engineer, USS O’KANE (DDG 77)
(602) 571-8609

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

HULLEY.MARTHA.E.

Digitally signed by

HULLEY.MARTHA.E.

Date: 2026.01.05 15:56:24 -08'00'

Office of Counsel, SWRMC C100
(619) 556-1587

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

MCNAIR.KENDRIC.ED
WARD.

Digitally signed by

MCNAIR.KENDRIC.EDWARD.

Date: 2026.01.06 06:26:42 -08'00'

Administrative Contracting Officer, SWRMC C440A
(619) 504-4054

APPROVAL BLOCK (FAR 6.304 for Approving Official)

Upon the basis of the above justification, I hereby approve, as Contracting Officer, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(b)(B).

ADMINISTRATIVE CONTRACTING OFFICER

ZERCHER.JENNIFER.MARIE.

Digitally signed by

ZERCHER.JENNIFER.MARIE.

Date: 2026.01.06 07:15:07 -08'00'

Branch Head, SWRMC C440A
(619) 708-5646